

## 26STCV01036 26STCV01036

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-08-11

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C316%2C08%2F11%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C316%2C08%2F11%2F2026)

Source SHA-256: 2e2df6ae83bff37d44fd0737951f1dbf5f266127c50b838ccb616e567d7d7801

Case Number: 26STCV01036 Hearing Date: August 11, 2026 Dept: 316

### BACKGROUND

This

case involves alleged financial elder abuse related to Defendant Joseph Chang purportedly unjustly inducing his mother Susan Chang to lease out her property to Joseph's company at extremely below-market rates.

On March 6, 2026, Plaintiffs Susan Chang,

Victor Chang, Marisa Lee filed their first amended complaint ("FAC") against Defendants Joseph Chang and Cash For Your House, LLC. The FAC alleges nine causes of action from the facts alleged above.

On July 22, 2026, Defendants filed a special demurrer.

On July 29, 2026, Plaintiffs filed an opposition.

On August 4, 2026, Defendants filed a reply.

### TENTATIVE RULING

Defendants' special demurrer to Plaintiffs' first amended complaint is OVERRULED.

### LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) There are two types of demurrers: general demurrers and special demurrers. (See McKenney v. Purepac Pharmaceutical Co. (2008) 167 Cal.App.4th 72, 77.) A special demurrer for misjoinder of parties may be brought pursuant to Code of Civil Procedure section 430.10, subdivision (d). A misjoinder of parties exists where the plaintiffs lack sufficient unity of interest or there is no common question of law or facts as to the defendants (See Code Civ. Proc., §§ 378-379.) “[A] defendant may not make allegations of defect or misjoinder of parties in the demurrer if the pleadings do not disclose the existence of the matter relied on; such objection must be taken by plea or answer.” (Harboring Villas HOA v. Superior Court (1998) 63 Cal.App.4th 426, 429 [defendant’s demurrer based on misjoinder of parties was improper basis for demurrer because facts in support of misjoinder argument did not appear on face of complaint].)¿¿

#### REQUEST FOR JUDICIAL NOTICE

Defendants request the Court take judicial notice of one exhibit, Respondent Susan Chang’s Objection to Cash for Your House, LLC’s Petition to Compel Arbitration. The Court will take judicial notice of the filing of this exhibit as a record of this Court. (See Evid. Code, § 452, subd. (d)(2).)

Plaintiffs also request the Court take judicial notice of one exhibit, the Court’s ruling on the Motion to Compel Arbitration. The Court will also take judicial notice of this exhibit as a record of this Court. (See Evid. Code, § 452, subd. (d)(2).)

#### DISCUSSION

I.  
Meet  
and Confer

Before filing a demurrer, the demurring or moving party shall meet and confer with the party who has

filed the pleading in person,  
by telephone, or by video conference. (See Code Civ. Proc., § 430.41,  
subd. (a).) Furthermore, the demurring or moving party must file  
a declaration detailing their meet and confer efforts. (Code Civ.  
Proc., § 430.41, subd. (a)(3).) “A determination by the court that  
the meet and confer process was insufficient shall not be grounds to overrule  
or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, the parties  
discussed the demurrer by telephone. (See Mortel Decl., ¶¶ 5-6.) Therefore, the  
meet and confer requirement has been satisfied. (See Code  
Civ. Proc., § 430.41, subd. (a).)

II.

Permissible

Joinder

The Court holds that Plaintiffs'  
claims were properly joined. Thus, the demurrer to this cause of action is  
overruled.

“All persons may join in  
one action as plaintiffs if: (1) They assert any right to relief jointly,  
severally, or in the alternative, in respect of or arising out of the same  
transaction, occurrence, or series of transactions or occurrences and if  
any question of law or fact common to all these persons will arise in the  
action[.]” (Code Civ. Proc., § 378, subd. (a)(1).) Furthermore, individuals  
may join in one action as plaintiffs if “[t]hey have a claim, right, or  
interest adverse to the defendant in the property or controversy which is the  
subject of the action.” (Id. at subd. (a)(2).) This  
statute “should be liberally construed so as  
to permit joinder whenever possible in furtherance of [its]  
purpose.” (Anaya v. Superior Court (1984) 160 Cal.App.3d 228, 232  
[internal citation omitted].) It is not necessary that each plaintiff be  
interested as to every cause of action or as to all relief prayed for. (Code  
Civ. Proc., § 378, subd. (b).)

Here, Defendants specially  
demur to the 5th, 7th, and 8th causes of  
action contending that these claims, asserted by Plaintiffs Marisa and Victor,

are improperly joined with the claims asserted by Plaintiff Susan, individually and as Trustee of the Trust. (See Demurrer, p. 6:11-16.)

The Court disagrees. First, the parties here are cotenants of the subject properties. (See FAC, ¶ 12.) Therefore, Plaintiffs are allowed to join their claims because their claims, rights, and interests in the subject properties are all adverse to Defendants. (See Code Civ. Proc., § 378, subd. (a)(2).) Furthermore, Plaintiffs all assert injury stemming from Defendants' alleged inducing Susan to lease out the subject properties without their approval and at an extremely low rate. (See FAC, ¶¶ 14, 17-21, 60-66, 69.) Therefore, Plaintiffs' claims all arise out the same transaction or occurrence. (See Code Civ. Proc., § 378, subd. (a)(1).)

Finally, Defendants contend these causes of action are subject to demurrer because Plaintiffs raise different grounds for their claims. (See Demurrer, pp. 13:3-7; 13:14-15; 14:13-14.) The Court is not convinced this is the case. However, even if Plaintiffs raised different grounds for their claims, it does not erase the fact that the claims arise out the same transaction or occurrence or that Plaintiffs on the one hand, and Defendants on the other, have adverse claims, rights, and interests in the subject properties. (See Code Civ. Proc., § 378, subds. (a)(1)-(2).) Furthermore, Plaintiffs need not have identical interests when alleging each cause of action (See Code Civ. Proc., § 378, subd. (b).) Therefore, even if Plaintiffs' interests do not exactly mirror one another, they are still allowed to join their claims.

The Court finds that Plaintiffs' claims all arise out the same transaction or occurrence and that they meet the requirements of Code of Civil Procedure section 378 to join their claims. For these reasons, the demurrer to this cause of action is overruled.

## CONCLUSION

In sum, Defendants' special demurrer to Plaintiffs' first amended complaint is OVERRULED. Defendants have twenty days to file and serve an answer to the FAC.